

defendant, a plaintiff must also allege the name(s) of the person(s) who made the fraudulent representations and their authority to speak. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of Cal.* (2016) 245 Cal.App.4th 821, 838.)

The demurrer is sustained with leave to amend as to the third and fourth causes of action. Plaintiff fails to allege each element of these claims with requisite specificity. Any amended complaint shall be filed and served on or before July 10, 2026.

23. T-CV-0002801 Kern, Gregory v. Weber, Anne Marie

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Dismiss in Part and to Continue Trial

Plaintiff moves to dismiss defendant Jon G. Jensen from this unlawful detainer action, to continue proceedings against defendant Anne Marie Weber, and to set new trial dates as against defendant Anne Marie Weber.

Plaintiff's motion lacks merit. Plaintiff cites to authorities pertaining to a post-judgment claim of right to possession, which are inapplicable because this case involves a pre-judgment claim of right to possession. Plaintiff argues judicial economy and the public policy behind summary unlawful detainer proceedings would best be served by permitting dismissal of defendant Jensen and permitting the case to proceed against defendant Weber. However, the court questions how two separate and distinct trials could serve judicial economy. The court questions how dismissal of Jensen and trial against Weber could serve the public policy behind unlawful detainer proceedings when the primary purpose of the action—recovery of possession of the premises—would be frustrated by the continued possession of Jensen.

The motion is denied without prejudice. The court schedules this matter for a case management conference on **July 23, 2026, at 9:00 a.m. in Department 3.**
